

Ex-judge found, wrists slashed

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Former Superior Court Judge Michael Greer was found yesterday afternoon in a Hemet motel room, groggy after an apparent suicide attempt.

Greer, 63, who was reported missing Tuesday night by his family, has been one of the subjects of a federal grand jury investigation into gift-taking by San Diego judges. The existence of the probe was confirmed publicly yesterday in a motion filed by Greer's lawyer seeking to derail the investigation.

That highly unusual motion to have the U.S. Attorney's Office removed from prosecuting a bribery and corruption case against Greer and three others was denied for the time being by a federal judge. The



FILE PHOTO

Michael Greer: *Listed in stable condition.*

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Greer

Missing ex-judge traced to motel room in Hemet

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papers indicated that indictments may be issued by Feb. 15.

Greer was found about 3 p.m. at the Best Western Motor Lodge by police in Hemet, in Riverside County. He apparently had ingested pills and slashed his wrists, said Jerry Lipscomb, a homicide lieutenant with the San Diego County Sheriff's Department.

"He was found in a groggy, incoherent state, with signs indicating possible suicide," Lipscomb said. "He had some minor lacerations on both wrists. He was aware enough to let police into his room, but he was unable to care for himself."

Greer was taken to Hemet Valley Medical Center and was reported in stable condition last night. Lipscomb said he did not know what type of drug Greer had taken.

Family members located Greer by calling motels he was known to frequent during business trips. They released a statement expressing "deep gratitude and appreciation for the outpouring of concern and support expressed by so many wonderful people."

Sheriff's detectives had been searching for Greer, who was last seen by his wife, June, at 8:30 a.m. Tuesday. Greer told her he was going to Carlsbad for a meeting, but

never showed up.

Credit-card records indicated that Greer drove instead to Lake Elsinore, where he purchased a \$100 figurine of a blonde wearing a dress and pinafore. The figurine, a gift for his wife, was sent to the couple's Poway house with a small card attached. The contents of the note were not made public.

State appellate justice Richard Huffman said he talked briefly with Greer's family yesterday.

"They appear to be still in shock," Huffman said. "They're absolutely delighted, of course. It's been a long couple of days. When he recovers, I'm sure we'll have a long talk."

Greer, a judge for 16 years, is being investigated on allegations that he took bribes from prominent attorney Patrick Frega. Frega and former Superior Court Judges G. Dennis Adams and James Malkus also are targets of the investigation.

In a flurry of court activity yesterday, lawyers for Greer and Frega filed papers arguing that the San Diego U.S. Attorney's Office should be removed from prosecuting the case because a lawyer in the office, Michael Dowd, represented Frega in a state investigation that led to the federal probe.

The request is highly unusual because the lawyers seek to remove the U.S. Attorney's Office even before a criminal indictment is issued.

If the motion is successful, the investigation would be delayed at least another two years, according to San Francisco attorney Dennis Riordan, who represents Frega.

A Nov. 20 letter from Assistant

"This investigation may result in federal criminal charges being brought against several former Superior Court judges..."

PHILLIP HALPERN
Assistant U.S. Attorney.

U.S. Attorney Phillip Halpern to Eric Dobberteen, one of Frega's lawyers, says Frega is a target.

"Among other things, the grand jury is investigating allegations that members of the California bar were bribing a number of San Diego Superior Court judges in exchange and as a reward for receiving favorable action on cases being handled in the San Diego court system," Halpern wrote. "This investigation may result in federal criminal charges being brought against several former Superior Court judges, one or more attorneys practicing in the San Diego area and other individuals who are involved in the bribery scheme."

The federal investigation grew out of a probe by the state Commission on Judicial Performance of gifts to San Diego judges by lawyers who appeared before them.

Greer, a former presiding Superior Court judge, resigned from of-

fice in June 1993 with seven charges of judicial misconduct pending against him. His resignation ended the commission's investigation. Malkus also resigned as he was being investigated by the commission.

Adams, who fought the allegations, was removed from office by the state Supreme Court in July for doing business with car dealer James Williams after Adams awarded Williams \$5 million in a lawsuit. Williams was represented by Frega.

According to the court papers, Frega represented Greer in the state investigation until Frega was informed that he would be a witness in the probe. Frega then quit as Greer's lawyer and hired Dowd, a former federal prosecutor, as his lawyer.

Dowd rejoined the U.S. Attorney's Office in May 1994 and has worked on prosecutions with Halpern and First Assistant U.S. Attorney Charles LaBella, both of whom are involved in the bribery investigation.

In a hearing yesterday, federal Judge Rudi Brewster denied a request for a temporary restraining order to remove the local U.S. Attorney's Office from the investigation. He scheduled another hearing on the matter for Jan. 19.

LaBella said Brewster agreed that the U.S. Attorney's Office could continue any investigation that may be in progress as long as it can show that Dowd has not been involved and has not revealed any information he learned during the time he represented Frega.

Postal Buddy Corp. — which once employed about 40 people here — has been inactive since the order cancellation, but the Goodmans have not been idle.

They now operate Automated Printing Machines, which has developed an automated kiosk similar to Postal Buddy for placement in retail stores such as Wal-Mart, Kmart and Office Depot.

Called "Avery Express" and developed with the label maker Avery Dennison Corp., the kiosks print address labels, business cards, stationery, awards and certificates, Sid Goodman said.

Martin Goodman said: "It will print change-of-address cards, but won't file them and doesn't sell stamps."

Two of the machines are being tested at Wal-Mart stores in Santee and Chula Vista, he said.

Postal officials said in the agreement accompanying the \$50 million payout there was no admission of wrongdoing or liability by any person.

However, *The Washington Post* reported that the Postal Service board of governors set up a special fund to cover the anticipated cost of the Postal Buddy settlement and created rules requiring postal officials to bring before the board any contract termination with large financial implications.

Marvin Runyon, the current postmaster general, has sought more involvement in electronic technology for the agency, which is developing a kiosk system to let people deal not only with the post office, but also with other government agencies.